

TENTATIVE RULINGS

FOR: September 04, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. C Zoom

Join by Video (Preferred)

<https://www.zoomgov.com/j/1612082144?pwd=lnDSeTFL0FCgo5tmb81mA8WbhAHBjV.1>

Join by Phone: 833 568 8864 or 833 435 1820 **Meeting ID:** 161 208 2144 **Password:** 214077

Dept. 6 Zoom

Join by Video (Preferred)

<https://www.zoomgov.com/j/1611412615?pwd=CVuzAdEmMJNjcWp0iWBmt1blRNHvyP.1>

Join by Phone: 833 568 8864 or 833 435 1820 **Meeting ID:** 161 141 2615 **Password:** 649401

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

**“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer.
(Cal. Rules of Court, Rule 1.150(c) & (d))**

**** All matters originally set in Dept. A & B will be heard in Dept. C ****

PROBATE CALENDAR – Hon. Robert Stamps, Dept. C (Historic Courthouse) at 8:30 a.m.

Conservatorship of Susan Rowan

25PR000112

- [1] FIRST ACCOUNT AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF PERSON AND ESTATE AND ATTORNEY FOR CONSERVATOR
- [2] REVIEW – 1ST YEAR

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. After a review of the matter, the Court finds the conservator is acting in the best interest of the conservatee. Thus, the matter is set for a biennial review and accounting in two years on September 7, 2028, at 8:30 a.m. in Dept. A. All accounting documents must be filed at least 30 days prior to the hearing. The court investigator shall prepare a biennial investigator report for the next hearing date. The clerk is directed to send notice to the parties.

Based on the report of the court investigator, the Court determines by clear and convincing evidence the conservatee cannot communicate, with or without reasonable accommodation, a desire to participate in the voting process, and orders the conservatee disqualified from voting pursuant to Elections Code section 2208.

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In The Matter of 2012 Irrevocable Matthew L. Gennet Trust

25PR000301

RESPONDENTS MATTHEW L. GENNET AND JON CONHAIM’S MOTION TO
BIFURCATE

TENTATIVE RULING: The matter is continued to October 6, 2026, at 8:30 a.m. in Dept. B. Respondents failed to provide sufficient notice of the motion. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b), and 1010.6, subd. (a)(3)(B).) Electronic service occurred on August 13, 2026. The last day for service was August 11, 2026. Petitioner raised an objection to the defective notice in opposition. Petitioner specifically indicated the substantive response on the merits did not constitute waiver or consent to the hearing as noticed. Petitioner requested a continuance. (Opp., pp. 3-8.) Respondents acknowledged the deficiency in their reply and contend there was no prejudice to petitioner due to the improper notice as petitioner was able to file a substantive response. Respondents, however, cite no applicable authority to support their contention. Because petitioner has not waived the defective service, the Court is without jurisdiction to hear the motion and has not reviewed the merits. (*Diaz v. Prof. Cmty. Mgmt., Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].) As respondents did not respond to the request for a continuance in the reply, and there is no evidence the parties met and conferred on the issue, the proper remedy is an entirely new notice period.

Respondents are directed to: (1) prepare an amended notice containing the continued hearing date and comply with Local Rule 2.9 as to the tentative ruling system; (2) provide timely service of the amended notice and all moving papers; (3) file a proof of service pursuant to California Rules of Court, rule 3.1300, subd. (c); and (4) review the local rules.

Petitioner is granted leave to file and serve an amended opposition no later than September 22, 2026. The amended opposition must be a complete and self-contained opposition and not simply an addendum to the August 24, 2026 opposition. The amended opposition must comply with all procedural requirements for oppositions to motions. The Court will disregard the previous opposition. Respondents are granted leave to serve and file, no later than September 29, 2026, a complete and self-contained amended reply complying with all procedural

requirements for replies in support of motions. The Court will disregard the August 28, 2026 reply.

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Estate of Ann Morrow Roberts

26PR000165

PETITION FOR PROBATE OF LOST WILL AND FOR LETTERS TESTAMENTARY
AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT
ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The petition is GRANTED. Michael Torr is appointed as the probate referee. The matter is set for a Status Hearing Re: Final Distribution on September 7, 2027, at 8:30 a.m. in Dept. B. The hearing may be vacated or continued without appearances needed if, prior to that date, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Robert Stamps, Dept. C (Historic Courthouse) at 8:30 a.m.

Dana Maria Sepulveda Morales v. David S. Kim et al

25CV001559

PLAINTIFF DANA MARIA SEPULVEDA’S MOTION FOR APPROVAL OF PRIVATE
ATTORNEYS’ GENERAL ACT SETTLEMENT

TENTATIVE RULING: The matter is continued to October 6, 2026, at 8:30 a.m. in Dept. B. The moving party failed to provide sufficient notice of the motion. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b), and 1010.6, subd. (a)(3)(B).) Electronic service occurred on August 13, 2026. The last day for service was August 11, 2026. Because the other parties have not waived the defective service, the Court is without jurisdiction to hear the motion. (*Diaz v. Prof. Cmty. Mgmt., Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].) The moving party is directed to provide timely service of the moving papers and to file proof of such service. The moving party is instructed to review the local rules and comply with Local Rule 2.9 with the amended notice. The moving party may also want to consider making sure the approximate size of the class of PAGA Members is presented clearly via declaration.

GUARDIANSHIP CALENDAR – Commissioner Douglas Skelton, Dept. 6 (Criminal Courts Bldg. – 1111 Third St.) at 2:00 p.m.

Guardianship of Juan Pablo Garcia Rodriguez et al

26PR000108

[1] PETITION FOR APPOINTMENT OF GUARDIAN

[2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both Petitions are GRANTED. The Court has read and considered all reports submitted pursuant to Probate Code section 1513.

The matter is set for a Guardianship Review Hearing and Event for September 03, 2027, at 2:00 p.m. in Dept. 6. The guardian is advised that he will receive a blank Status Report (GC-251 Form) in the mail in approximately 11 months that he will be required to complete and return to the Court. Timely filing of the form may result in the hearing being vacated.

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Guardianship of Claritza Gissel Martinez Rosales

26PR000123

[1] PETITION FOR APPOINTMENT OF GUARDIAN

[2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both Petitions are CONTINUED to October 16, 2026, at 2:00 p.m. in Dept. 6 to allow Petitioner to remedy the following issues:

With respect to the Guardianship Petition,

1. There is no Proof of service or waiver on Paternal grandmother Maria Estila Zepeda, Maternal grandparents and siblings Angie Alejandra Almendares Rosales and Emanuel Alejandro Almendares Rosales.
2. There is no Health and Human Services (HHS) report in the file. (Prob. Code §§ 1513, 1516, 1543.) The Court notes that an order to HHS (Local Form GU-2) was signed on June 12, 2026. Petitioner is required to serve that order on HHS and file a Proof of Service with the Court.
3. There is no Parental Notification of Indian Status (ICWA-020 Form) on file.
4. There is no proposed letters (GC-250 (Letters of Guardianship)) on file.

This is the first continuance of the matter.

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Guardianship of Rosalina Cherron Martinez

26PR000127

PETITION FOR APPOINTMENT OF GUARDIAN OF MINOR

TENTATIVE RULING: The Petition is GRANTED. The Court has read and considered all reports submitted pursuant to Probate Code section 1513.

The matter is set for a Guardianship Review Hearing and Event for September 03, 2027, at 2:00 p.m. in Dept. 6. The guardian is advised that she will receive a blank Status Report (GC-251 Form) in the mail in approximately 11 months that she will be required to complete and return to the Court. Timely filing of the form may result in the hearing being vacated.

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Guardianship of Avril Arike Alcantara Canes

26PR000136

- [1] PETITION FOR APPOINTMENT OF GUARDIAN
- [2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both Petitions are CONTINUED to October 16, 2026, at 2:00 p.m. in Dept. 6. There is no Health and Human Services (HHS) report in the file. (Prob. Code §§ 1513, 1516, 1543.) The Court file shows that Petitioner served HHS on July 08, 2026. (See 07/08/2026 Notice of Hearing.) Prior to the next hearing, Petitioner is directed to contact HHS (if an HHS report is still not on file) to obtain a status as to the report and an estimated filing date. Appearances will then be required at the next hearing for the Petitioner to report the status to the Court.

This is the first continuance of the matter.

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Guardianship of Alyson Ayllen Alcantara Canes

26PR000137

- [1] PETITION FOR APPOINTMENT OF GUARDIAN
- [2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both Petitions are CONTINUED to October 16, 2026, at 2:00 p.m. in Dept. 6. There is no Health and Human Services (HHS) report in the file. (Prob. Code §§ 1513, 1516, 1543.) The Court file shows that Petitioner served HHS on July 08, 2026. (See 07/08/2026 Notice of Hearing.) Prior to the next hearing, Petitioner is directed to contact HHS (if an HHS report is still not on file) to obtain a status as to the report and an estimated filing date. Appearances will then be required at the next hearing for the Petitioner to report the status to the Court.

This is the first continuance of the matter.